

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
IRIS ANDINO,

Plaintiff,

SUMMONS

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, P.O. YARIS GONZALEZ, Shield No. 27403 (Tax Id. No. 948346), Individually and in his/her Official Capacity, P.O. OWEN KEHOE, Shield No. 26307 (Tax Id. No. 945875), Individually and in his/her Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Plaintiff designates New York County as the place of trial.

The basis of venue is:
CPLR § 504(3)

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
July 16, 2018COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115TO:
ZACHARY W. CARTER
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100 Church Street
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Police Service Area 5
221 E 123rd St, New York, NY 10035P.O. OWEN KEHOE, Shield No. 26307 (Tax Id No. 945875)
Police Service Area 5
221 E 123rd St, New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
IRIS ANDINO,

Plaintiff,

-against-

VERIFIED COMPLAINT

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

THE CITY OF NEW YORK, P.O. YARIS GONZALEZ, Shield No. 27403 (Tax Id. No. 948346), Individually and in his/her Official Capacity, P.O. OWEN KEHOE, Shield No. 26307 (Tax Id. No. 945875), Individually and in his/her Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X
Plaintiff IRIS ANDINO, by her attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff IRIS ANDINO is a Hispanic female and has been at all relevant times a resident of New York County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections

of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, P.O. YARIS GONZALEZ, Shield No. 27403 (Tax Id. No. 948346), P.O. OWEN KEHOE, Shield No. 26307 (Tax Id. No. 945875), and POLICE OFFICERS “JOHN DOE” #1-10, (the name John Doe being fictitious, as the true names are presently unknown), were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned, the individually named defendants GONZALEZ, KEHOE, and POLICE OFFICERS “JOHN DOE” #1-10 were police officers for the New York City Police Department and were acting under the supervision of said department and according to their official duties.

6. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

9. On or about May 12, 2017, at approximately between 8:00 p.m. and 8:30 p.m. in the County of New York, City, and State of New York, plaintiff IRIS ANDINO was lawfully present in the vicinity of her home, 1505 Park Avenue, Apt. 14A New York, NY.

10. At the above-mentioned time and place, members of the NYPD, upon information and belief, defendants GONZALEZ, KEHOE, and POLICE OFFICERS “JOHN DOE” #1-10, came to plaintiff’s residence and placed her godson under arrest. At this time, the officers detained plaintiff in the hallway outside of her apartment for several hours (until approximately 1:00 a.m. on May 13, 2017) and then released her. At the time of her release, plaintiff was advised by these officers that she was not allowed to return to her apartment at that time and that they would notify her when she was permitted to return.

11. In addition, the officers, upon information and belief, defendants GONZALEZ, KEHOE, and POLICE OFFICERS “JOHN DOE” #1-10, locked plaintiff out of her own apartment, upon information and belief, without any court order permitting them to do so. Thereafter, plaintiff went to stay with another person in her apartment building.

12. At no time on or about or between May 12, 2017 and May 16, 2017 did plaintiff return to her apartment.

13. Further, on or about or between May 12, 2017 and May 16, 2017, plaintiff was unreasonably deprived the use and enjoyment of her property without cause, due process, and/or her consent.

14. Upon information, on about or between May 12, 2017 and May 16, 2017, defendants GONZALEZ, KEHOE, and POLICE OFFICERS "JOHN DOE" #1-10 searched plaintiff's apartment. However, plaintiff was not present during this (these) search(es) and did not consent to same.

15. Subsequently, on or about May 16, 2017, plaintiff returned to her apartment building, 1505 Park Avenue New York, NY, at approximately between 5:00 and 6:00 p.m and was lawfully present therein. At this time, plaintiff went to see if she allowed back into her apartment.

16. As plaintiff was in the hallway and before she made it her apartment, she was approached by approximately six (6) police officers, upon information and belief, defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, who demanded to know who had unlocked plaintiff's apartment.

17. In response, plaintiff advised these officers that she had not been back to the apartment since May 12, 2017, that she did not unlock the apartment, and that she was unaware of who unlocked the apartment, if anyone. At this time, the officers placed plaintiff under arrest by handcuffing her arms tightly behind her back.

18. At no time on May 12, 2017, and/or May 16, 2017 and/or any time in between, did defendants GONZALEZ, KEHOE and/or POLICE OFFICERS "JOHN DOE" #1-10, possess probable cause to arrest plaintiff.

19. At no time on May 12, 2017, and/or May 16, 2017 and/or any time in between did defendants GONZALEZ, KEHOE and/or POLICE OFFICERS "JOHN DOE" #1-10, possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

20. At no time on May 12, 2017, and/or May 16, 2017 and/or any time in between did defendants GONZALEZ, KEHOE and/or POLICE OFFICERS “JOHN DOE” #1-10, possess probable cause and/or reasonable suspicion to search plaintiff’s person, home, and/or effects nor did they obtain voluntary consent from her to do so.

21. At no time on May 12, 2017, and/or May 16, 2017 and/or any time in between did defendants GONZALEZ, KEHOE and/or POLICE OFFICERS “JOHN DOE” #1-10, possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s person, home, and/or effects.

22. Upon information and belief, the defendant police officers GONZALEZ, KEHOE and/or POLICE OFFICERS “JOHN DOE” #1-10, did not enter pursuant to a valid search warrant.

23. Upon information and belief, the defendant police officers GONZALEZ, KEHOE and/or POLICE OFFICERS “JOHN DOE” #1-10, did not provide a copy of said warrant to plaintiff upon request.

24. Upon information and belief, the defendant police officers GONZALEZ, KEHOE and/or POLICE OFFICERS “JOHN DOE” #1-10, if they did possess a warrant, did not enter in a manner or at a time authorized in the warrant.

25. Upon information and belief, the plaintiff was not listed or described as suspects or targets on any application for any warrant.

26. Plaintiff’s apartment was unreasonably seized without process and/or plaintiff’s consent and plaintiff was not permitted to return to her apartment for approximately four (4) days.

27. Thereafter, plaintiff was transported to a nearby police precinct where she was searched, fingerprinted, photographed, confined in a holding cell against her will for several hours, and charged with crimes by defendants GONZALEZ, KEHOE and/or POLICE OFFICERS "JOHN DOE" #1-10. Specifically, plaintiff was charged with Criminal Possession of Marijuana in the 2nd Degree.

28. After being detained at the aforementioned precinct for several hours plaintiff was transported to Central Booking where she was searched, upon information and belief, subjected to a retina scan, and further detained in holding cells for several hours.

29. In connection with plaintiff's arrest, defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Thereafter, defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, falsely stated, *inter alia*, that plaintiff IRIS ANDINO was found to be in possession of a quantity of marijuana.

30. At no time on May 12, 2017, and/or May 16, 2017 and/or any time in between did plaintiff possess any marijuana and/or drug paraphernalia, have custody and control over any marijuana and/or drug paraphernalia, commit any crimes or offenses or

behave unlawfully in any way, nor was any evidence or contraband found on her person or effects.

31. As a result of the foregoing, plaintiff was in custody for approximately twenty-four (24) hours and made approximately six (6) court appearances before all charges against her were dismissed in their entirety on or about January 8, 2018.

32. In addition, as a result of the foregoing, plaintiff had to spend money to hire a private criminal defense attorney and was suspended from her job with the New York City Board of Education during the pendency of the criminal proceedings, causing her to lose wages.

33. As a result of the foregoing, plaintiff IRIS ANDINO sustained, inter alia, loss of liberty, physical injuries, economic damages, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of her constitutional rights.

STATE CLAIMS

34. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

35. On or about January 24, 2018 and within (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

36. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

37. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on or about April 12, 2018.

38. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

39. Plaintiff has complied with all conditions precedent to maintaining the instant action.

40. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/IMPRISONMENT

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

42. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10 arrested plaintiff in the absence of probable cause and without a warrant.

43. As a result of the foregoing, plaintiff was falsely imprisoned, her liberty was restricted for an extended period of time, she was put in fear for her safety, she suffered economic damages, and was humiliated and subjected to handcuffing and other physical restraints.

44. Plaintiff was conscious of said confinement and did not consent to the same.

45. The confinement of plaintiff was without probable cause and was not otherwise privileged.

46. As a result of the aforesaid conduct by defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of plaintiff’s rights.

47. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

49. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10 aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

50. As a result of defendants’ conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

51. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

52. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10 touched plaintiff in a harmful and offensive manner.

53. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, did so without privilege or consent from plaintiff.

54. As a result of defendants’ conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

55. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

56. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

57. The aforementioned conduct was committed by defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

58. The aforementioned conduct was committed by defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

59. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

60. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

61. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

62. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

63. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

64. Due to the negligence of the defendants as set forth above, plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

65. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

66. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

67. On or about May 16, 2017, defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, commenced a criminal proceeding against plaintiff.

68. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, lacked probable cause to commence said criminal proceeding against plaintiff.

69. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, were motivated by actual malice in commencing said criminal proceeding against plaintiff.

70. From May 16, 2017 until January 8, 2018, plaintiff was forced to repeatedly make appearances in Criminal Court to defend herself against the unlawful prosecution initiated by defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10.

71. As a result of the malicious prosecution against her, plaintiff spent approximately eight (8) months making court appearances and made approximately six (6) court appearances during the pendency of her criminal case.

72. On or about January 8, 2018, the criminal prosecution against plaintiff was terminated in her favor when the charges against her were dismissed in their entirety.

73. As a result of the aforementioned conduct, plaintiff suffered mental and physical injury, together with embarrassment, humiliation, shock, fright, economic damages, and loss of freedom.

FEDERAL CLAIMS

**FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

74. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

75. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

76. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

77. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

78. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

79. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

80. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

81. As a result of the aforesaid conduct by defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

82. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

83. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

84. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against plaintiff.

85. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, forwarded false evidence and false information to prosecutors in the New York County District Attorney’s office.

86. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings. Specifically, defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, falsely stated, *inter alia*, that plaintiff IRIS ANDINO was found to be in possession of a quantity of marijuana.

87. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

88. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

89. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

90. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, misrepresented and falsified evidence before the New York County District Attorney.

91. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, did not make a complete and full statement of facts to the District Attorney.

92. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, withheld exculpatory evidence from the District Attorney.

93. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, were directly and actively involved in the initiation of criminal proceedings against plaintiff.

94. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, lacked probable cause to initiate criminal proceedings against plaintiff.

95. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, acted with malice in initiating criminal proceedings against plaintiff.

96. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, were directly and actively involved in the continuation of criminal proceedings against plaintiff.

97. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, lacked probable cause to continue criminal proceedings against plaintiff.

98. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, acted with malice in continuing criminal proceedings against plaintiff.

99. Defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, misrepresented and falsified evidence throughout all phases of the criminal

proceedings. Specifically, defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, falsely stated, *inter alia*, that plaintiff IRIS ANDINO was found to be in possession of a quantity of marijuana.

100. Notwithstanding the perjurious and fraudulent conduct of defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, the criminal proceeding against plaintiff was dismissed in its entirety on or about January 8, 2018.

101. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, she lost wages and suffered other economic damages, and she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
UNLAWFUL SEARCH AND ENTRY UNDER 42 U.S.C. § 1983

102. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

103. As a result of the aforesaid conduct by defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff's home and possessions were illegally and improperly entered without consent, a valid warrant, probable cause, privilege or consent, in violation of her constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

104. As a result of the aforesaid conduct by the defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff's home was entered illegally at time not prescribed in the warrant, in violation of her constitutional rights as

set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

105. As a result of the aforesaid conduct by the defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiffs were not provided a copy of said warrant upon request, in violation of her constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

106. As a result of the aforesaid conduct by the defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal search and seizure pursuant to an invalid search warrant obtained with stale information, in violation of her constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

107. As a result of the aforesaid conduct by the defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal search and seizure pursuant to an invalid anticipatory search warrant for which probable cause was lacking, in violation of her constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

108. As a result of the aforesaid conduct by the defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal search and seizure pursuant to an invalid search warrant issued upon an affidavit containing false or recklessly inaccurate information and/or which omitted information upon which a judge would have concluded there was no probable cause for its issuance, in violation of her constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

109. As a result of the aforesaid conduct by defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs’ home and possessions were illegally and improperly searched without any warrant, probable cause, privilege or consent, in violation of her constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

SIXTH CLAIM FOR RELIEF
UNREASONABLE SEIZURE OF PROPERTY UNDER 42 U.S.C. § 1983

110. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

111. As a result of the aforesaid conduct by defendants GONZALEZ, KEHOE, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff’s property was unreasonably seized in that plaintiff’s apartment was seized for approximately four (4) days, during which time she was not permitted entry into her property.

112. Plaintiff was deprived the use and enjoyment of her property for an extended and unreasonable period of time without seeing a judge or other magistrate to determine the probable cause for this continued seizure.

113. As a result of the foregoing, plaintiff’s property was seized and she was unreasonably restricted from using same for an extended period of time, without consent, probable cause, or due process of law.

114. As a result of the aforesaid conduct by defendants, plaintiff’s property and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of her constitutional rights as

set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

SEVENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

115. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

116. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

117. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. executing search warrants and arresting any and all individuals in said premises regardless of individualized probable cause; and,
- iv. fabricating evidence in connection with their prosecution in order to cover up police or NYPD employee misconduct; and,
- v. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,

- vi. failing to take reasonable steps to control and/or discipline police officers who lie and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

118. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

119. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

120. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

121. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

122. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

123. The acts complained of deprived the plaintiff of her right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;

- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
July 16, 2018

BY: _____/S_____
GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

PLAINTIFF'S VERIFICATION

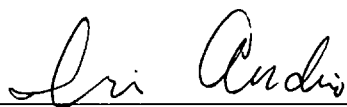
STATE OF NEW YORK)

) ss.:

COUNTY OF NEW YORK)

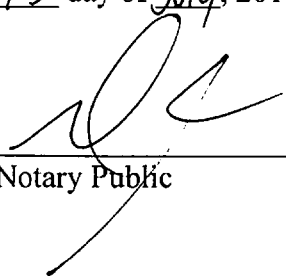
IRIS ANDINO, being duly sworn, deposes and says:

I am the plaintiff in the foregoing action; I have read the annexed Complaint and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and to those matters I believe them to be true.



IRIS ANDINO

Sworn to before me this
13 day of July, 2018



Notary Public

